

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 650

By: Paxton of the Senate

and

Harris of the House

10 An Act relating to public utilities; defining term;
11 requiring the governing body of a public utility to
12 adopt a plan for components of maintenance and
13 operation of public utilities; providing for contents
14 of plan; specifying process for notice; allowing for
15 public utilities to be in compliance upon approval of
16 plan; authorizing certain state agencies to verify
17 certain provisions of plan; preventing certain
18 recovery of damages under certain circumstances;
19 amending 51 O.S. 2021, Sections 152, as last amended
20 by Section 111, Chapter 452, O.S.L. 2024, 154, and
21 155, as amended by Section 21, Chapter 228, O.S.L.
22 2022 (51 O.S. Supp. 2024, Sections 152 and 155),
23 which relate to The Governmental Tort Claims Act;
24 defining term; increasing award amounts for certain
 claims; specifying certain accidents and occurrences;
 providing for the process and amounts awarded under
 certain circumstances; expanding exemptions for
 liability by the state or political subdivisions;
 updating statutory references and language; making
 language gender neutral; providing for codification;
 and providing an effective date.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. NEW LAW A new section of law to be codified
3 in the Oklahoma Statutes as Section 37-235 of Title 11, unless there
4 is created a duplication in numbering, reads as follows:

5 A. As used in this section, "public utility" means a
6 municipally owned utility or other publicly owned utility providing
7 sewage services through a sanitary sewer system.

8 B. The governing body of the public utility shall adopt a plan
9 that includes, but is not limited to, the following:

10 1. Mapping and recordkeeping of a sanitary sewer system for
11 maintenance and operation of the system;

12 2. A policy of inspections, cleaning, and root control of sewer
13 lines that contains the following elements:

14 a. an inspection program of sewer lines to determine
15 whether sewage flows are clear, moderately occluded,
16 or severely occluded,

17 b. a program of routine maintenance of sewer lines, and

18 c. a treatment program for sewer lines identified as
19 having blockages due to root infiltration, of which
20 the public utility has notice, with root control
21 through either mechanical or chemical treatments;

22 3. A policy of responding to calls for sanitary sewer overflows
23 (SSOs) to clear municipal sewer mains, flush with water and
24

1 deodorize the land upon which SSO has occurred, and remove SSO
2 debris from land upon which SSO has occurred;

3 4. Adoption of a "Fats, Oils, and Grease (FOG) Ordinance" that
4 makes unlawful the improper introduction of fats, oils, or grease
5 from nonresidential entities that are connected to the sanitary
6 sewer system and incorporating pre-treatment regulations adopted by
7 the Department of Environmental Quality for such entities. Public
8 utilities shall periodically notify sanitary sewer system
9 participants and dischargers of the restrictions within this
10 paragraph;

11 5. Adoption of an ordinance requiring new construction or
12 remodels of existing buildings to be connected to the sanitary sewer
13 system, including the installation of a backflow prevention device
14 on the private service line connecting the structure to the sanitary
15 sewer main line;

16 6. Adoption of a policy that will notify private residential
17 property owners who are connected to the sanitary sewer system of
18 the option to provide additional personal protection through
19 installation of a backflow prevention system on the private service
20 line connecting the property to the sanitary sewer main line. At
21 the discretion of the governing body of the public utility, after
22 considering available funding, private residential property owners
23 connected to the sewer system may be offered public assistance with
24 installation and inspection of backflow prevention devices;

1 7. Adoption of a funding availability model that identifies:

2 a. the total revenue from ratepayers that can reasonably
3 be expected over a fiscal year,

4 b. other funding sources from municipal revenues that can
5 reasonably be expected to be contributed to the
6 sanitary sewer system operations, maintenance, or
7 capital improvements,

8 c. external sources of funding from local, state,
9 federal, or tribal entities that could be available
10 for sanitary sewer system operations, maintenance, or
11 capital improvements, and

12 d. bonding capacities, whether revenue bonds or general
13 obligation bonds, that could be available for sanitary
14 sewer system operations, maintenance, or capital
15 improvements.

16 Funding availability models shall be reviewed at least every five
17 (5) years to include a rate study recommending reasonable rates for
18 those connected to the sanitary sewer system; and

19 8. Adoption of a five-year capital improvement plan that
20 considers dedication of funding available to:

21 a. repair or replace sanitary sewer lines that have been
22 identified as severely occluded,

1 b. repair or replace municipal sanitary sewer lift
2 stations necessary for the continued operation of the
3 system, and

4 c. access or purchase equipment for operation of the
5 municipal sanitary sewer system serving the citizens
6 of the municipality that are connected to the
7 municipal sanitary sewer system.

8 C. Notification as described in paragraphs 4 and 6 of
9 subsection B of this section shall be satisfied by annual
10 publication in a newspaper of general circulation within the service
11 area of the public utility, publication on the public utility
12 sponsored website, or annual inserts in ratepayer monthly utility
13 bills. Nothing in this subsection shall be construed to prohibit a
14 public utility from making multiple notifications to ratepayers in
15 the one-year period.

16 D. Public utilities that implement policies prescribed in
17 subsection B of this section shall be considered in compliance with
18 the provisions of this section.

19 E. The Oklahoma Water Resources Board and other state agencies
20 that provide funding to public utilities for water and wastewater
21 improvements shall ensure that any ranking structure for approval of
22 applications for funding considers the sustainability efforts of
23 systems that adopted the plans identified in this statute.

1 F. There shall be no right of recovery for personal injury from
2 a sanitary sewer overflow, provided that the utility charged with
3 operation of the sanitary sewer system is working to maintain its
4 sanitary sewer system in accordance with the guidance and criteria
5 promulgated by the governing body pursuant to subsection B of this
6 section and any criteria or guidelines promulgated by a governmental
7 entity under an interlocal cooperative agreement pursuant to Section
8 1001 et seq. of Title 74 of the Oklahoma Statutes, as such
9 components are determined by the governing body to be fiscally
10 achievable considering available revenue streams to the public
11 utility to fund the same. While those municipalities qualifying for
12 relief under this section shall be exempt from personal injury
13 damage claims of annoyance and inconvenience associated with a
14 sanitary sewer overflow that alleges a nuisance-based cause of
15 action, nothing herein shall otherwise prohibit a right of recovery
16 for property damages associated with a sanitary sewer overflow in
17 accordance with The Governmental Tort Claims Act.

18 SECTION 2. AMENDATORY 51 O.S. 2021, Section 152, as last
19 amended by Section 111, Chapter 452, O.S.L. 2024 (51 O.S. Supp.
20 2024, Section 152), is amended to read as follows:

21 Section 152. As used in The Governmental Tort Claims Act:

22 1. "Action" means a proceeding in a court of competent
23 jurisdiction by which one party brings a suit against another;
24

1 2. "Agency" means any board, commission, committee, department
2 or other instrumentality or entity designated to act in behalf of
3 the state or a political subdivision;

4 3. "Charitable health care provider" means a person who is
5 licensed, certified, or otherwise authorized by the laws of this
6 state to administer health care in the ordinary course of business
7 or the practice of a profession and who provides care to a medically
8 indigent person, as defined in paragraph 9 of this section, with no
9 expectation of or acceptance of compensation of any kind;

10 4. "Claim" means any written demand presented by a claimant or
11 the claimant's authorized representative in accordance with ~~the~~ The
12 Governmental Tort Claims Act to recover money from the state or
13 political subdivision as compensation for an act or omission of a
14 political subdivision or the state or an employee;

15 5. "Claimant" means the person or the person's authorized
16 representative who files notice of a claim in accordance with The
17 Governmental Tort Claims Act. Only the following persons and no
18 others may be claimants:

- 19 a. any person holding an interest in real or personal
20 property which suffers a loss, provided that the claim
21 of the person shall be aggregated with claims of all
22 other persons holding an interest in the property and
23 the claims of all other persons which are derivative
24

- 1 of the loss, and that multiple claimants shall be
2 considered a single claimant,
- 3 b. the individual actually involved in the accident or
4 occurrence who suffers a loss, provided that the
5 individual shall aggregate in the claim the losses of
6 all other persons which are derivative of the loss, or
7 c. in the case of death, an administrator, special
8 administrator or a personal representative who shall
9 aggregate in the claim all losses of all persons which
10 are derivative of the death;

11 6. "Community health care provider" means:

- 12 a. a health care provider who volunteers services at a
13 community health center that has been deemed by the
14 U.S. Department of Health and Human Services as a
15 federally qualified health center as defined by 42
16 U.S.C., Section 1396d(1)(2)(B),
- 17 b. a health provider who provides services to an
18 organization that has been deemed a federally
19 qualified look-alike community health center, and
20 c. a health care provider who provides services to a
21 community health center that has made application to
22 the U.S. Department of Health and Human Services for
23 approval and deeming as a federally qualified look-
24 alike community health center in compliance with

1 federal application guidance, and has received
2 comments from the U.S. Department of Health and Human
3 Services as to the status of such application with the
4 established intent of resubmitting a modified
5 application, or, if denied, a new application, no
6 later than six (6) months from the date of the
7 official notification from the U.S. Department of
8 Health and Human Services requiring resubmission of a
9 new application;

10 7. "Employee" means any person who is authorized to act in
11 behalf of a political subdivision or the state whether that person
12 is acting on a permanent or temporary basis, with or without being
13 compensated or on a full-time or part-time basis.

14 a. Employee also includes:

15 (1) all elected or appointed officers, members of
16 governing bodies and other persons designated to
17 act for an agency or political subdivision, but
18 the term does not mean a person or other legal
19 entity while acting in the capacity of an
20 independent contractor or an employee of an
21 independent contractor,

22 (2) from September 1, 1991, through June 30, 1996,
23 licensed physicians, licensed osteopathic
24 physicians and certified nurse-midwives providing

1 prenatal, delivery or infant care services to
2 State Department of Health clients pursuant to a
3 contract entered into with the State Department
4 of Health in accordance with paragraph 3 of
5 subsection ~~B~~ C of Section 1-106 of Title 63 of
6 the Oklahoma Statutes but only insofar as
7 services authorized by and in conformity with the
8 terms of the contract and the requirements of
9 Section 1-233 of Title 63 of the Oklahoma
10 Statutes, and

11 (3) any volunteer, full-time or part-time firefighter
12 when performing duties for a fire department
13 provided for in subparagraph j of paragraph ~~11~~ 12
14 of this section.

15 b. For the purposes of The Governmental Tort Claims Act,
16 the following are employees of this state, regardless
17 of the place in this state where duties as employees
18 are performed:

19 (1) physicians acting in an administrative capacity,
20 (2) resident physicians and resident interns
21 participating in a graduate medical education
22 program of the University of Oklahoma Health
23 Sciences Center, the Oklahoma State University
24 College of Osteopathic Medicine ~~of Oklahoma State~~

1 ~~University~~, or the Department of Mental Health
2 and Substance Abuse Services,

3 (3) faculty members and staff of the University of
4 Oklahoma Health Sciences Center and the Oklahoma
5 State University College of Osteopathic Medicine
6 ~~of Oklahoma State University~~, while engaged in
7 teaching duties,

8 (4) physicians who practice medicine or act in an
9 administrative capacity as an employee of an
10 agency of the State of Oklahoma,

11 (5) physicians who provide medical care to inmates
12 pursuant to a contract with the Department of
13 Corrections,

14 (6) any person who is licensed to practice medicine
15 pursuant to Title 59 of the Oklahoma Statutes,
16 who is under an administrative professional
17 services contract with the Oklahoma Health Care
18 Authority under the auspices of the Oklahoma
19 Health Care Authority Chief Medical Officer, and
20 who is limited to performing administrative
21 duties such as professional guidance for medical
22 reviews, reimbursement rates, service
23 utilization, health care delivery and benefit
24 design for the Oklahoma Health Care Authority,

1 only while acting within the scope of such
2 contract,

3 (7) licensed medical professionals under contract
4 with city, county, or state entities who provide
5 medical care to inmates or detainees in the
6 custody or control of law enforcement agencies,

7 (8) licensed mental health professionals as defined
8 in Sections 1-103 and 5-502 of Title 43A of the
9 Oklahoma Statutes, who are conducting initial
10 examinations of individuals for the purpose of
11 determining whether an individual meets the
12 criteria for emergency detention as part of a
13 contract with the Department of Mental Health and
14 Substance Abuse Services, and

15 (9) licensed mental health professionals as defined
16 in Sections 1-103 and 5-502 of Title 43A of the
17 Oklahoma Statutes, who are providing mental
18 health or substance abuse treatment services
19 under a professional services contract with the
20 Department of Mental Health and Substance Abuse
21 Services and are providing such treatment
22 services at a state-operated facility.

23 Physician faculty members and physician staff of the
24 University of Oklahoma Health Sciences Center and the

1 Oklahoma State University College of Osteopathic
2 ~~Medicine of Oklahoma State University~~ not acting in an
3 administrative capacity or engaged in teaching duties
4 are not employees or agents of the state.

5 c. For the purposes of The Governmental Tort Claims Act,
6 employee shall include independent contractors and
7 employees of independent contractors while actively
8 engaged in the transport of individuals in need of
9 initial assessment, emergency detention, or protective
10 custody as authorized by Section 1-110 of Title 43A of
11 the Oklahoma Statutes.

12 d. Except as provided in subparagraph b of this
13 paragraph, in no event shall the state be held liable
14 for the tortious conduct of any physician, resident
15 physician or intern while practicing medicine or
16 providing medical treatment to patients.

17 e. For purposes of The Governmental Tort Claims Act,
18 members of the state military forces on state active
19 duty orders or on Title 32 active duty orders are
20 employees of this state, regardless of the place,
21 within or outside this state, where their duties as
22 employees are performed;

23 8. "Loss" means death or injury to the body or rights of a
24 person or damage to real or personal property or rights therein;

1 9. "Medically indigent" means a person requiring medically
2 necessary hospital or other health care services for the person or
3 the dependents of the person who has no public or private third-
4 party coverage, and whose personal resources are insufficient to
5 provide for needed health care;

6 10. "Municipality" means any incorporated city or town, and all
7 institutions, agencies or instrumentalities of a municipality;

8 11. "Occurrence" means a loss arising out of an accident or
9 event or a continuous or repeated exposure to substantially the same
10 general harmful conditions. All losses arising out of an accident
11 or event or a continuous or repeated exposure to substantially the
12 same general harmful conditions shall be deemed to have arisen out
13 of one occurrence;

14 12. "Political subdivision" means:

- 15 a. a municipality,
- 16 b. a school district, including, but not limited to, a
17 technology center school district established pursuant
18 to Section 4410, 4411, 4420 or 4420.1 of Title 70 of
19 the Oklahoma Statutes,
- 20 c. a county,
- 21 d. a public trust where the sole beneficiary or
22 beneficiaries are a city, town, school district or
23 county. For purposes of The Governmental Tort Claims
24 Act, a public trust shall include:

- 1 (1) a municipal hospital created pursuant to Sections
2 30-101 through 30-109 of Title 11 of the Oklahoma
3 Statutes, a county hospital created pursuant to
4 Sections 781 through 796 of Title 19 of the
5 Oklahoma Statutes, or is created pursuant to a
6 joint agreement between such governing
7 authorities, that is operated for the public
8 benefit by a public trust created pursuant to
9 Sections 176 through 180.4 of Title 60 of the
10 Oklahoma Statutes and managed by a governing
11 board appointed or elected by the municipality,
12 county, or both, who exercises control of the
13 hospital, subject to the approval of the
14 governing body of the municipality, county, or
15 both,
- 16 (2) a public trust created pursuant to Sections 176
17 through 180.4 of Title 60 of the Oklahoma
18 Statutes after January 1, 2009, the primary
19 purpose of which is to own, manage, or operate a
20 public acute care hospital in this state that
21 serves as a teaching hospital for a medical
22 residency program provided by a college of
23 osteopathic medicine and provides care to
24 indigent persons, and

1 (3) a corporation in which all of the capital stock
2 is owned, or a limited liability company in which
3 all of the member interest is owned, by a public
4 trust,

5 e. for the purposes of The Governmental Tort Claims Act
6 only, a housing authority created pursuant to the
7 provisions of the Oklahoma Housing Authorities Act,

8 f. for the purposes of The Governmental Tort Claims Act
9 only, corporations organized not for profit pursuant
10 to the provisions of the Oklahoma General Corporation
11 Act for the primary purpose of developing and
12 providing rural water supply and sewage disposal
13 facilities to serve rural residents,

14 g. for the purposes of The Governmental Tort Claims Act
15 only, districts formed pursuant to the Rural Water,
16 Sewer, Gas and Solid Waste Management Districts Act,

17 h. for the purposes of The Governmental Tort Claims Act
18 only, master conservancy districts formed pursuant to
19 the Conservancy Act of Oklahoma,

20 i. for the purposes of The Governmental Tort Claims Act
21 only, a fire protection district created pursuant to
22 the provisions of Section 901.1 et seq. of Title 19 of
23 the Oklahoma Statutes,
24

- j. for the purposes of The Governmental Tort Claims Act only, a benevolent or charitable corporate volunteer or full-time fire department for an unincorporated area created pursuant to the provisions of Section 592 et seq. of Title 18 of the Oklahoma Statutes,
- k. for purposes of The Governmental Tort Claims Act only, an ~~Emergency Services Provider~~ emergency services provider rendering services ~~within the boundaries of a Supplemental Emergency Services District~~ pursuant to an existing contract between the ~~Emergency Services Provider~~ emergency services provider and the State Department of Health. Provided, however, that the acquisition of commercial liability insurance covering the activities of such ~~Emergency Services Provider~~ emergency services provider performed within this state shall not operate as a waiver of any of the limitations, immunities or defenses provided for political subdivisions pursuant to the terms of The Governmental Tort Claims Act,
- l. for purposes of The Governmental Tort Claims Act only, a conservation district created pursuant to the provisions of the Conservation District Act,

- 1 m. for purposes of The Governmental Tort Claims Act,
2 districts formed pursuant to the Oklahoma Irrigation
3 District Act,
- 4 n. for purposes of The Governmental Tort Claims Act only,
5 any community action agency established pursuant to
6 Sections 5035 through ~~5040~~ 5040.1 of Title 74 of the
7 Oklahoma Statutes,
- 8 o. for purposes of The Governmental Tort Claims Act only,
9 any organization that is designated as a youth
10 services agency, pursuant to Section 2-7-306 of Title
11 10A of the Oklahoma Statutes,
- 12 p. for purposes of The Governmental Tort Claims Act only,
13 any judge presiding over a drug court, as defined by
14 Section 471.1 of Title 22 of the Oklahoma Statutes,
- 15 q. for purposes of The Governmental Tort Claims Act only,
16 any child-placing agency licensed by this state to
17 place children in foster family homes,
- 18 r. for purposes of The Governmental Tort Claims Act only,
19 a circuit engineering district created pursuant to
20 Section 687.1 of Title 69 of the Oklahoma Statutes,
- 21 s. for purposes of ~~the~~ The Governmental Tort Claims Act
22 only, a substate planning district, regional council
23 of government or other entity created pursuant to
24

1 Section 1001 et seq. of Title 74 of the Oklahoma
2 Statutes, and

3 t. for purposes of The Governmental Tort Claims Act only,
4 a regional transportation authority created pursuant
5 to Section 1370.7 of Title 68 of the Oklahoma Statutes
6 including its contract operator and any railroad
7 operating in interstate commerce that sells a property
8 interest or provides services to a regional
9 transportation authority or allows the authority to
10 use the property or tracks of the railroad for the
11 provision of public passenger rail service to the
12 extent claims against the contract operator or
13 railroad arise out of or are related to or in
14 connection with such property interest, services or
15 operation of the public passenger rail service.
16 Provided, the acquisition of commercial liability
17 insurance to cover the activities of the regional
18 transportation authority, contract operator or
19 railroad shall not operate as a waiver of any
20 liabilities, immunities or defenses provided pursuant
21 to the provisions of ~~the~~ The Governmental Tort Claims
22 Act,

23 and all their institutions, instrumentalities or agencies;
24

1 ~~12.~~ 13. "Scope of employment" means performance by an employee
2 acting in good faith within the duties of the employee's office or
3 employment or of tasks lawfully assigned by a competent authority
4 including the operation or use of an agency vehicle or equipment
5 with actual or implied consent of the supervisor of the employee,
6 but shall not include corruption or fraud;

7 ~~13.~~ 14. "State" means the State of Oklahoma or any office,
8 department, agency, authority, commission, board, institution,
9 hospital, college, university, public trust created pursuant to
10 Title 60 of the Oklahoma Statutes of which the State of Oklahoma is
11 the beneficiary, or other instrumentality thereof;

12 ~~14.~~ 15. "State active duty" shall be defined in accordance with
13 Section 801 of Title 44 of the Oklahoma Statutes;

14 ~~15.~~ 16. "State military forces" shall be defined in accordance
15 with Section 801 of Title 44 of the Oklahoma Statutes;

16 ~~16.~~ 17. "Title 32 active duty" shall be defined in accordance
17 with Section 801 of Title 44 of the Oklahoma Statutes; and

18 ~~17.~~ 18. "Tort" means a legal wrong, independent of contract,
19 involving violation of a duty imposed by general law, statute, the
20 Constitution of the State of Oklahoma, or otherwise, resulting in a
21 loss to any person, association or corporation as the proximate
22 result of an act or omission of a political subdivision or the state
23 or an employee acting within the scope of employment; provided,
24 however, a tort shall not include a claim for inverse condemnation.

SECTION 3. AMENDATORY 51 O.S. 2021, Section 154, is amended to read as follows:

Section 154. A. The total liability of the state and its political subdivisions on claims within the scope of The Governmental Tort Claims Act, arising out of an accident or occurrence happening after October 1, 1985, Section 151 et seq. of this title, shall not exceed:

1. ~~Twenty-five Thousand Dollars (\$25,000.00)~~ Thirty-five Thousand Dollars (\$35,000.00) for any claim or to any claimant who has more than one claim for loss of property, including related consequential damages, arising out of a single act, accident, or occurrence;

2. For physical injury from a municipal overflow or backup, Five Thousand Dollars (\$5,000.00) per individual person occupying the structure at the time of the occurrence not to exceed an aggregate damage amount of Twenty Thousand Dollars (\$20,000.00) per occurrence regardless of the number of persons affected by the occurrence;

3. For nuisance, annoyance, or inconvenience damages from a municipal overflow or backup, Five Thousand Dollars (\$5,000.00) per individual person occupying the structure at the time of the occurrence not to exceed an aggregate damage amount of Twenty Thousand Dollars (\$20,000.00) per occurrence regardless of the number of persons affected by the occurrence;

1 4. Except as otherwise provided in this paragraph, One Hundred
2 Twenty-five Thousand Dollars (\$125,000.00) to any claimant for a
3 claim for any other loss arising out of a single act, accident, or
4 occurrence. The limit of liability for the state or any city or
5 county with a population of three hundred thousand (300,000) or more
6 according to the latest Federal Decennial Census, or a political
7 subdivision as defined in subparagraph s of paragraph ~~11~~ 12 of
8 Section 152 of this title, shall not exceed One Hundred Seventy-five
9 Thousand Dollars (\$175,000.00). Except however, the limits of ~~the~~
10 liability for the University Hospitals and ~~State Mental Health~~
11 ~~Hospitals~~ state mental health hospitals operated by the Department
12 of Mental Health and Substance Abuse Services for claims arising
13 from medical negligence shall be Two Hundred Thousand Dollars
14 (\$200,000.00). For claims arising from medical negligence by any
15 licensed physician, osteopathic physician or certified nurse-midwife
16 rendering prenatal, delivery or infant care services from September
17 1, 1991, through June 30, 1996, pursuant to a contract authorized by
18 subsection ~~B~~ C of Section 1-106 of Title 63 of the Oklahoma Statutes
19 and in conformity with the requirements of Section 1-233 of Title 63
20 of the Oklahoma Statutes, the limits of ~~the~~ liability shall be Two
21 Hundred Thousand Dollars (\$200,000.00); or

22 ~~3.~~ 5. One Million Dollars (\$1,000,000.00) for any number of
23 claims for indemnification pursuant to Section 162 of this title
24 arising out of a single occurrence or accident.

1 B. 1. Beginning on May 28, 2003, claims shall be allowed for
2 wrongful criminal felony conviction resulting in imprisonment if the
3 claimant has received a full pardon on the basis of a written
4 finding by the Governor of actual innocence for the crime for which
5 the claimant was sentenced or has been granted judicial relief
6 absolving the claimant of guilt on the basis of actual innocence of
7 the crime for which the claimant was sentenced. The Governor or the
8 court shall specifically state, in the pardon or order, the evidence
9 or basis on which the finding of actual innocence is based.

10 2. As used in paragraph 1 of this subsection, for a claimant to
11 recover based on "actual innocence", the individual must meet the
12 following criteria:

- 13 a. the individual was charged, by indictment or
14 information, with the commission of a public offense
15 classified as a felony,
- 16 b. the individual did not plead guilty to the offense
17 charged, or to any lesser included offense, but was
18 convicted of the offense,
- 19 c. the individual was sentenced to incarceration for a
20 term of imprisonment as a result of the conviction,
- 21 d. the individual was imprisoned solely on the basis of
22 the conviction for the offense, and
- 23 e. (1) in the case of a pardon, a determination was made
24 by either the Pardon and Parole Board or the

1 Governor that the offense for which the
2 individual was convicted, sentenced and
3 imprisoned, including any lesser offenses, was
4 not committed by the individual, or

5 (2) in the case of judicial relief, a court of
6 competent jurisdiction found by clear and
7 convincing evidence that the offense for which
8 the individual was convicted, sentenced and
9 imprisoned, including any lesser included
10 offenses, was not committed by the individual and
11 issued an order vacating, dismissing or reversing
12 the conviction and sentence and providing that no
13 further proceedings can be or will be held
14 against the individual on any facts and
15 circumstances alleged in the proceedings which
16 had resulted in the conviction.

17 3. A claimant shall not be entitled to compensation for any
18 part of a sentence in prison during which the claimant was also
19 serving a concurrent sentence for a crime not covered by this
20 subsection.

21 4. The total liability of the state and its political
22 subdivisions on any claim within the scope of The Governmental Tort
23 Claims Act arising out of wrongful criminal felony conviction
24

1 resulting in imprisonment shall not exceed One Hundred Seventy-five
2 Thousand Dollars (\$175,000.00).

3 5. The provisions of this subsection shall apply to convictions
4 occurring on or before May 28, 2003, as well as convictions
5 occurring after May 28, 2003. If a court of competent jurisdiction
6 finds that retroactive application of this subsection is
7 unconstitutional, the prospective application of this subsection
8 shall remain valid.

9 C. No award for damages in an action or any claim against the
10 state or a political subdivision shall include punitive or exemplary
11 damages.

12 D. When the amount awarded to or settled upon multiple
13 claimants exceeds the limitations of this section, any party may
14 apply to the district court which has jurisdiction of the cause to
15 apportion to each claimant the claimant's proper share of the total
16 amount as limited herein. The share apportioned to each claimant
17 shall be in the proportion that the ratio of the award or settlement
18 made to ~~him~~ each claimant bears to the aggregate awards and
19 settlements for all claims against the state or its political
20 subdivisions arising out of the occurrence. When the amount of the
21 aggregate losses presented by a single claimant exceeds the limits
22 ~~of paragraph 1 or 2~~ of subsection A of this section, each person
23 suffering a loss shall be entitled to that person's proportionate
24 share.

1 E. The total liability of resident physicians and interns while
2 participating in a graduate medical education program of the
3 University of Oklahoma College of Medicine, its affiliated
4 institutions and the Oklahoma State University College of
5 Osteopathic Medicine ~~and Surgery~~ shall not exceed One Hundred
6 Thousand Dollars (\$100,000.00).

7 F. The state or a political subdivision may petition the court
8 that all parties and actions arising out of a single accident or
9 occurrence shall be joined as provided by law, and upon order of the
10 court the proceedings upon good cause shown shall be continued for a
11 reasonable time or until such joinder has been completed. The state
12 or political subdivision shall be allowed to interplead in any
13 action which may impose on it any duty or liability pursuant to The
14 Governmental Tort Claims Act.

15 G. The liability of the state or political subdivision under
16 The Governmental Tort Claims Act shall be several from that of any
17 other person or entity, and the state or political subdivision shall
18 only be liable for that percentage of total damages that corresponds
19 to its percentage of total negligence. Nothing in this section
20 shall be construed as increasing the liability limits imposed on the
21 state or political subdivision under The Governmental Tort Claims
22 Act.

1 SECTION 4. AMENDATORY 51 O.S. 2021, Section 155, as
2 amended by Section 21, Chapter 228, O.S.L. 2022 (51 O.S. Supp. 2024,
3 Section 155), is amended to read as follows:

4 Section 155. The state or a political subdivision shall not be
5 liable if a loss or claim results from:

6 1. Legislative functions;

7 2. Judicial, quasi-judicial, or prosecutorial functions, other
8 than claims for wrongful criminal felony conviction resulting in
9 imprisonment provided for in Section 154 of this title;

10 3. Execution or enforcement of the lawful orders of any court;

11 4. Adoption or enforcement of or failure to adopt or enforce a
12 law, whether valid or invalid, including, but not limited to, any
13 statute, charter provision, ordinance, resolution, rule, regulation
14 or written policy;

15 5. Performance of or the failure to exercise or perform any act
16 or service which is in the discretion of the state or political
17 subdivision or its employees;

18 6. Civil disobedience, riot, insurrection or rebellion or the
19 failure to provide, or the method of providing, police, law
20 enforcement or fire protection;

21 7. Any claim based on the theory of attractive nuisance;

22 8. Snow or ice conditions or temporary or natural conditions on
23 any public way or other public place due to weather conditions,
24

1 unless the condition is affirmatively caused by the negligent act of
2 the state or a political subdivision;

3 9. Entry upon any property where that entry is expressly or
4 implied authorized by law;

5 10. Natural conditions of property of the state or political
6 subdivision;

7 11. Assessment or collection of taxes or special assessments,
8 license or registration fees, or other fees or charges imposed by
9 law;

10 12. Licensing powers or functions including, but not limited
11 to, the issuance, denial, suspension or revocation of or failure or
12 refusal to issue, deny, suspend or revoke any permit, license,
13 certificate, approval, order or similar authority;

14 13. Inspection powers or functions, including failure to make
15 an inspection, review or approval, or making an inadequate or
16 negligent inspection, review or approval of any property, real or
17 personal, to determine whether the property complies with or
18 violates any law or contains a hazard to health or safety, or fails
19 to conform to a recognized standard;

20 14. Any loss to any person covered by any workers' compensation
21 act or any employer's liability act;

22 15. Absence, condition, location or malfunction of any traffic
23 or road sign, signal or warning device unless the absence,
24 condition, location or malfunction is not corrected by the state or

1 political subdivision responsible within a reasonable time after
2 actual or constructive notice or the removal or destruction of such
3 signs, signals or warning devices by third parties, action of
4 weather elements or as a result of traffic collision except on
5 failure of the state or political subdivision to correct the same
6 within a reasonable time after actual or constructive notice.
7 Nothing herein shall give rise to liability arising from the failure
8 of the state or any political subdivision to initially place any of
9 the above signs, signals or warning devices. The signs, signals and
10 warning devices referred to herein are those used in connection with
11 hazards normally connected with the use of roadways or public ways
12 and do not apply to the duty to warn of special defects such as
13 excavations or roadway obstructions;

14 16. Any claim which is limited or barred by any other law;

15 17. Misrepresentation, if unintentional;

16 18. An act or omission of an independent contractor or
17 consultant or his or her employees, agents, subcontractors or
18 suppliers or of a person other than an employee of the state or
19 political subdivision at the time the act or omission occurred;

20 19. Theft by a third person of money in the custody of an
21 employee unless the loss was sustained because of the negligence or
22 wrongful act or omission of the employee;

1 20. Participation in or practice for any interscholastic or
2 other athletic contest sponsored or conducted by or on the property
3 of the state or a political subdivision;

4 21. Participation in any activity approved by a local board of
5 education and held within a building or on the grounds of the school
6 district served by that local board of education before or after
7 normal school hours or on weekends;

8 22. Use of indoor or outdoor school property and facilities
9 made available for public recreation before or after normal school
10 hours or on weekends or school vacations, except those claims
11 resulting from willful and wanton acts of negligence. For purposes
12 of this paragraph:

13 a. "public" includes, but is not limited to, students
14 during nonschool hours and school staff when not
15 working as employees of the school, and

16 b. "recreation" means any indoor or outdoor physical
17 activity, either organized or unorganized, undertaken
18 for exercise, relaxation, diversion, sport or
19 pleasure, and that is not otherwise covered by
20 paragraph 20 or 21 of this section;

21 23. Any court-ordered, Department of Corrections or county
22 approved work release program; provided, however, this provision
23 shall not apply to claims from individuals not in the custody of the
24

1 Department of Corrections based on accidents involving motor
2 vehicles owned or operated by the Department of Corrections;

3 24. The activities of the state military forces when on state
4 active duty orders or on Title 32 active duty orders;

5 25. Provision, equipping, operation or maintenance of any
6 prison, jail or correctional facility, or injuries resulting from
7 the parole or escape of a prisoner or injuries by a prisoner to any
8 other prisoner; provided, however, this provision shall not apply to
9 claims from individuals not in the custody of the Department of
10 Corrections based on accidents involving motor vehicles owned or
11 operated by the Department of Corrections;

12 26. Provision, equipping, operation or maintenance of any
13 juvenile detention facility, or injuries resulting from the escape
14 of a juvenile detainee, or injuries by a juvenile detainee to any
15 other juvenile detainee;

16 27. Any claim or action based on the theory of manufacturer's
17 products liability or breach of warranty, either expressed or
18 implied;

19 28. Any claim or action based on the theory of indemnification
20 or subrogation; provided, however, a political subdivision as
21 defined in subparagraph s of paragraph ~~11~~ 12 of Section 152 of this
22 title may enter into a contract with a contract operator or any
23 railroad operating in interstate commerce that sells a property
24 interest or provides services to a regional transportation

1 authority, or allows the regional transportation authority to use
2 the railroad's property or tracks for the provision of public
3 passenger rail service, providing for the allocation of financial
4 responsibility, indemnification, or the procurement of insurance for
5 the parties for all types of claims or damages, provided that funds
6 have been appropriated to cover the resulting contractual obligation
7 at the time the contract is executed. The acquisition of commercial
8 liability insurance to cover the activities of the regional
9 transportation authority, contract operator or railroad shall not
10 operate as a waiver of any of the liabilities, immunities or
11 defenses provided for political subdivisions pursuant to the
12 provisions of The Governmental Tort Claims Act. A contract entered
13 into under this paragraph shall not affect rights of employees under
14 the Federal ~~Employers~~ Employers' Liability Act or the ~~Federal~~
15 Railway Labor Act;

16 29. Any claim based upon an act or omission of an employee in
17 the placement of children;

18 30. Acts or omissions done in conformance with then current
19 recognized standards;

20 31. Maintenance of the state highway system or any portion
21 thereof unless the claimant presents evidence which establishes
22 either that the state failed to warn of the unsafe condition or that
23 the loss would not have occurred but for a negligent affirmative act
24 of the state;

1 32. Any confirmation of the existence or nonexistence of any
2 effective financing statement on file in the ~~office~~ Office of the
3 Secretary of State made in good faith by an employee of the ~~office~~
4 Office of the Secretary of State as required by the provisions of
5 Section 1-9-320.6 of Title 12A of the Oklahoma Statutes;

6 33. Any court-ordered community sentence;

7 34. Remedial action and any subsequent related maintenance of
8 property pursuant to and in compliance with an authorized
9 environmental remediation program, order, or requirement of a
10 federal or state environmental agency;

11 35. The use of necessary and reasonable force by a school
12 district employee to control and discipline a student during the
13 time the student is in attendance or in transit to and from the
14 school, or any other function authorized by the school district;

15 36. Actions taken in good faith by a school district employee
16 for the out-of-school suspension of a student pursuant to applicable
17 Oklahoma Statutes; ~~or~~

18 37. Use of a public facility opened to the general public
19 during an emergency;

20 38. Flooding, backups, or stoppages of storm sewers or sanitary
21 sewers that are caused by unordinary rainfall events, considering
22 duration and intensity of the rainfall events, that result in flows
23 that exceed the design capacity of the sewer system;

1 39. Sanitary sewer overflows that have occurred on lines within
2 the sanitary sewer system where no report of a blockage, backup, or
3 overflow has been made to the political subdivision or utility
4 operator within the preceding three (3) years; or

5 40. A sanitary sewer overflow occurring on private property,
6 provided that the utility operator is in compliance with Section 1
7 of this act. This paragraph shall not apply to claims for loss of
8 property.

9 SECTION 5. This act shall become effective November 1, 2025.

10
11 DIRECT TO CALENDAR.